

CALIFORNIA

Holding your cellphone while driving for navigation is illegal, California court rules

Los Angeles Times

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Mounted phones are exempted, a court ruled. (Allen G. Breed / Ass

ld violate the current law, the



By Salvador Hernandez
Staff Writer |  Follow

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Think it's all right to hold your cellphone while driving, as long as you're just looking at a navigation app? Think again.

A state appeals court ruled Tuesday that the state law prohibiting drivers from texting or talking on a cellphone while driving also makes it illegal to hold a phone to look at a map on the screen.

The driver doesn't need to be swiping or tapping at the navigation application to break the law, the court ruled. Just looking at the map on the screen, with the phone in hand, can justify a citation.

When legislators said they wanted to curb cellphone while driving, they didn't anticipate advancements in navigation technology on the road," the court wrote.

Mounted phones, according to the decision, violate the current law, though the court didn't say whether that applies to handheld devices.

"Allowing a driver to look at a map without touching the phone would violate the law," [the court ruled](#).

The court decision came after Porter contested the ticket. Porter was fined \$158, according to the court.

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Porter appealed the decision with the appellate division of the Santa Clara County Superior Court and the decision was reversed, with the superior court at the time ruling that "operating" a cell phone required "active use or manipulation of the device."

"Merely observing GPS directions on the phone does not constitute the kind of active use or manipulation to trigger an infraction," the court ruled at the time.

But the California Court of Appeal for the sixth appellate district disagreed, and reversed the decision Tuesday, stating in its opinion that the law as written, and intended, says that looking at and holding the phone while driving is a violation.

The current version of the law, adopted by the Legislature in 2016, was introduced after a previous court decision also raised questions about California’s version of the law regarding phones and driving.

That case also arose when a driver was found guilty of violating the law because he was looking at a phone while driving. The driver reached the court of appeal, it interpreted the law as prohibiting listening and talking while driving.

That interpretation of the law at the time stated that listening and talking while driving was a violation.

In 2016, the law was amended to act more as “prohibited” rather than “violation.”

In issuing its ruling, the court stated that the current law was based on the Appropriations Committee’s recommendation that the law be used “for any device-related behavior that is a distraction while driving.”

That would include looking at a phone while driving, the recent ruling, which said that looking at a phone while driving is a violation.

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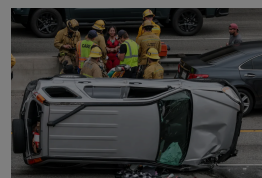
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